

Here, there are no factual allegations to demonstrate that Defendant was aware that his conduct would cause severe emotional distress. Plaintiff pleads the recklessness of drinking and driving, but no facts demonstrating that the conduct would cause severe emotional distress—just the legal conclusion. SUSTAINED WITH ONE ADDITIONAL, AND LAST, OPPORTUNITY TO AMEND.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2604217	MADRIGAL VS DELACRUZ	MOTION TO STRIKE COMPLAINT OF ENRIQUE MADRIGAL BY AIDEN RAZIEL DELACRUZ

Tentative Ruling: Moot.

Moving Defendant to provide notice pursuant to CCP 1019.5.

Defendant moves to strike punitive damages, contending it does not meet the standard of *Taylor* or *Dawes*.

As the only allegations for punitive damages are pled within the intentional infliction of emotional distress, and not a separate punitive damages attachment, the motion is moot in light of the demurrer.